

**IN THE CIRCUIT COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL ACTION**

TAYLOR JANELL ANDERSON,
Plaintiff,

v.

CASE NO:

MAXIMUS VECCHIET,
GIANLUCA VECCHIET,
and ELIZABETH VECCHIET,
Defendants.

AMENDED COMPLAINT

Plaintiff, TAYLOR JANELL ANDERSON, sues the Defendants, MAXIMUS VECCHIET, GIANLUCA VECCHIET and ELIZABETH VECCHIET, and alleges:

GENERAL ALLEGATIONS

1. This is an action for damages that are in excess of the sum of \$50,000.00, exclusive of interest and costs.
2. That at all times material hereto, Plaintiff, TAYLOR JANELL ANDERSON, is a resident of Bradenton, Florida in Manatee County, Florida.
3. That at all times material hereto, Defendants, MAXIMUS VECCHIET, GIANLUCA VECCHIET, and ELIZABETH VECCHIET, are residents of Dripping Springs, Texas in Hays County, Texas.
4. That, pursuant to Florida Statute §48.193, Florida's long-arm statute, Defendant, MAXIMUS VECCHIET, as a registered student at IMG Academy in Bradenton, Florida between January 2021 and June 2022, had sufficient contact with the State of Florida.
5. That, pursuant to Florida Statute §48.193, Florida's long-arm statute, Defendants, GIANLUCA VECCHIET and ELIZABETH VECCHIET, as legal parents of Defendant, MAXIMUS VECCHIET, had sufficient contact with the State of Florida by and through tuition transactions with IMG Academy in Bradenton, Florida.

6. That jurisdiction is proper in Manatee County, Florida.

**COUNT I – UNLAWFUL INTERCEPTION OF ELECTRONIC COMMUNICATIONS BY
MAXIMUS VECCHIET**

7. The Plaintiff re-alleges each and every one of the allegations contained in paragraphs 1 through 6 hereof.

8. On or about July 24, 2021 and August 25, 2021, the Defendant, MAXIMUS VECCHIET, owned and operated an Apple iPhone 12, phone number (512) 765-0065, in or near Travis County, Texas and in or near Harris County, Texas.

9. At that time and place, the Defendant, MAXIMUS VECCHIET, negligently operated the Apple iPhone 12 where Defendant unlawfully intercepted two FaceTime electronic transmissions by surreptitiously recording them without the consent of the Plaintiff, TAYLOR JANELL ANDERSON, pursuant to Florida Statute §934.03(1)(a), known as the Florida Security of Communications Act.

10. As a result, the Plaintiff, TAYLOR JANELL ANDERSON, suffered resulting pain and suffering, embarrassment, mental anguish, loss of capacity for the enjoyment of life, expense of court costs and fees, medical treatment, and loss of earnings. The losses are either permanent or continuing and Plaintiff will suffer the losses in the future.

WHEREFORE, the Plaintiff, TAYLOR JANELL ANDERSON, sues the Defendant, MAXIMUS VECCHIET, for compensatory damages in an amount in excess of the minimum jurisdictional limits of this Court, to-wit: \$50,000.00, exclusive of interest and costs, and demands judgment therefore.

**COUNT II – UNLAWFUL DISCLOSURE OF INTERCEPTED ELECTRONIC
COMMUNICATIONS WITH CHASE INGRAM**

11. The Plaintiff re-alleges each and every one of the allegations contained in paragraphs 1 through 10 hereof.

12. That Defendant, MAXIMUS VECCHIET, knowingly disclosed/showed the two unlawfully intercepted FaceTime recordings to Defendant's friend and IMG Academy roommate, Chase Ingram, pursuant to Florida Statute §934.03(1)(c).

COUNT III – NEGLIGENCE OF PARENTS, GIANLUCA VECCHIET AND ELIZABETH VECCHIET

13. The Plaintiff re-alleges each and every one of the allegations contained in paragraphs 1 through 12 hereof.

14. That at all times material hereto, the Defendants, GIANLUCA VECCHIET and ELIZABETH VECCHIET, were and are the legal parents of Defendant, MAXIMUS VECCHIET, who was a minor on July 24, 2021 and August 25, 2021.

15. That Defendants, GIANLUCA VECCHIET AND ELIZABETH VECCHIET, knew or should have known that Defendant, MAXIMUS VECCHIET, had possession of and operated an Apple iPhone 12 with the phone number of (512) 765-0065 while a minor on July 24, 2021 and August 25, 2021.

16. That Defendants, GIANLUCA VECCHIET AND ELIZABETH VECCHIET, knew or should have known that Defendant, MAXIMUS VECCHIET, utilized the Apple iPhone 12 for the purpose of, but not limited to personal, academic, and athletic communications.

17. That Defendants, GIANLUCA VECCHIET AND ELIZABETH VECCHIET, failed to exercise parental control over their minor child, MAXIMUS VECCHIET, by negligently supervising and/or monitoring the Defendant's iPhone 12.

18. As a result, the Plaintiff, TAYLOR JANELL ANDERSON, suffered resulting pain and suffering, embarrassment, mental anguish, loss of capacity for the enjoyment of life, expense of court costs and fees, medical treatment, and loss of earnings. The losses are either permanent or continuing and Plaintiff will suffer the losses in the future

WHEREFORE, the Plaintiff, TAYLOR JANELL ANDERSON, sues the Defendants, GIANLUCA VECCHIET and ELIZABETH VECCHIET, for compensatory damages in an amount in excess of the minimum jurisdictional limits of this Court, to-wit: \$50,000.00, exclusive of interest and costs, and demands judgment therefore.

COUNT IV – PUNITIVE DAMAGES

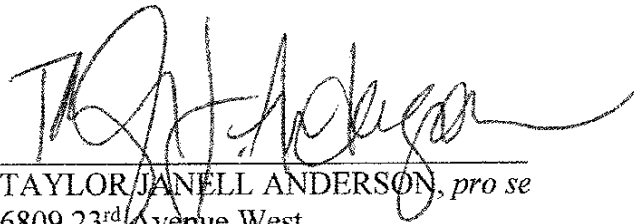
19. Plaintiff re-alleges paragraphs 1 through 18 herein.

20. At the time of the incidents on July 24, 2021 and August 25, 2021, Defendant, MAXIMUS VECCHIET, knowingly and willfully recorded the Plaintiff, TAYLOR JANELL ANDERSON, without Plaintiff's knowledge and consent.

21. At the time of the incidents on July 24, 2021 and August 25, 2021, Defendant, MAXIMUS VECCHIET, by surreptitiously recording the aforementioned FaceTime electronic communications, reasonably knew that such intentional misconduct, regardless of the wrongfulness of the conduct, could potentially have damaging and substantial effects on the Plaintiff, TAYLOR JANELL ANDERSON.

22. That as a result of said actions, Defendant, MAXIMUS VECCHIET, intentionally pursued the course of conduct, resulting in damages as set forth in this Complaint.

WHEREFORE, the Plaintiff requests this Honorable Court grant judgment against the Defendant, MAXIMUS VECCHIET, for punitive damages, pain and suffering, lost wages, and emotional pain and suffering, interest, attorney's fees, costs, and any such other relief as this Court may deem just and appropriate.



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